Calendar Line 1
Case Name: People v. Ke "Jason" Wang et al.
Case No.: 20CV368215

At issue is a motion by plaintiffs the People of the State of California and the County of Santa Clara to enter judgment under the terms of a settlement agreement. (Code Civ. Proc., § 664.6, subd. (a); unspecified statutory references are to the Code of Civil Procedure.) Notice is proper, and the motion is opposed by defendant Ke Jason Wang.

"If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." (§ 664.6, subd. (a).) The trial court must determine whether the parties have entered into an enforceable settlement. (*Osumi v. Sutton* (2007) 151 Cal.App.4th 1355, 1360.) The trial court "acts as the trier of fact, determining whether the parties entered into a valid and binding settlement." (*Terry v. Conlan* (2005) 131 Cal.App.4th 1445, 1454.)

Plaintiffs originally sued Ke Jason Wang, Chunyan "Cathy" Ge, Woodside Capital LLC, Walnut Venture LLC, Morgan Venture LLC, and Doe defendants in 2020. The complaint alleged causes of action for, among other things, public nuisance related to properties including two at issue here: 598 Palm Avenue and 0 Kalana Avenue in Morgan Hill (subject properties). (Original complaint, filed 7/9/2020.) The court issued a temporary restraining order requiring defendants to cease illegal uses of the subject properties. (TRO, 7/30/20.) The court then issued a preliminary injunction after a hearing. (Preliminary injunction, 9/25/20.)

The subject properties were subsequently sold to Farming All Industries, LLC (owned by Carmichael Jones). Plaintiffs amended their complaint to name Farming All Industries, LLC and Carmichael Jones as defendants. (FAC 10/22/21.) The FAC alleged a new cause of action against defendant Ke Jason Wang and others under the Uniform Fraudulent Transfer Act (Civ. Code, § 3439). (FAC, ¶ 157.) Default judgment was entered against Farming All Industries, LLC and Carmichael Jones after they failed to appear in the case. (Default judgment, 4/5/24.) A permanent injunction was imposed against Farming All Industries, LLC and Carmichael Jones, enjoining them from illegal use of the subject properties. (Permanent injunction, 4/2/24.) A receiver was appointed in 2024 to remedy the public nuisance at the subject properties. (6/4/24 and 7/1/24 orders.) The July 2024 order found that defendant Ke Jason "Wang was the owner of the Subject Properties as of June 4, 2024." (7/1/24 Order, p. 2:7-12.) The court takes judicial notice of the foregoing court records on its own motion. (Evid. Code, § 452, subd. (d).)

Plaintiffs' counsel attaches to her declaration a "Stipulation and Agreement for Material Terms of Settlement," apparently reached following a mediation in November 2024. (Brender dec. ISO motion, 6/3/26 (Brender dec.), ¶ 8; exh. 4.) The stipulation is signed by plaintiffs and defendant Ke Jason Wang (both in his individual capacity and "On behalf of the LLC Defendants." (Exh. 4, p. 4.) The stipulation provides, "Defendants hereby agree to settle in full the claims brought by Plaintiff for a total of $1.7 million." (Exh. 4, p. 1.) Defendants were to pay plaintiffs the following installments: $200,000 within 45 days after execution of a long-form agreement; $500,000 no more than one year after the long-form agreement; and $1,000,000 no more than one year after the court dissolves the court-appointed receiver or deems the receivership proceedings complete. (Exh. 4, p. 1.) The agreement indicated it did not "modify, replace, release, or offset the terms of the receivership." (*Ibid.*) The parties agreed the agreement was "binding and enforceable on the Parties and their successors." (Exh. 4, p. 3.) While the parties agreed to bear their own costs and attorney fees related to the proceedings leading to the agreement, the agreement provides: "In the event of any action or proceeding to enforce or set aside this Agreement, the prevailing party therein shall be entitled to recover all reasonable attorney's fees, costs and expenses with respect to such action or proceeding." (Exh. 4, p. 3.) The parties signed a "First Amendment to Stipulation and Agreement for Material Terms of Settlement" in March 2025, which stated there would be no long-form agreement. (Exh. 4, p. 6.) The installments payments would instead be based on an effective date of February 14, 2025. (*Ibid.*)

Plaintiffs' counsel declares that plaintiffs received $300,000 from defendants in January 2025, with plaintiffs crediting the extra $100,000 received toward the total balance owed. (Brender dec., ¶ 12.) Defendant Ke Jason Wang did not meet the February 2026 deadline to make the second payment. Defendant Ke Jason Wang informed plaintiffs via email that he believed there were "two paths forward": either set aside the receivership, allow him to sell the subject properties, and he would agree to honor the settlement agreement; or "proceed to trial or negotiate a new settlement agreement." (Brender dec., exh. 6, p. 3 [3/2026 email].) The parties met and conferred. Defendant Ke Jason Wang made a $51,000 payment. And defendant Ke Jason Wang indicated he was planning to leave the United States. (Brender dec., ¶¶ 15, 16.) To date, defendant Ke Jason Wang has an overdue balance of $349,000, and will owe plaintiffs an additional $1,000,000 once the receivership proceedings are complete.

Based on the foregoing, the court finds the parties have entered into an enforceable settlement and that defendant Ke Jason Wang is in material breach of that settlement.

Defendant Ke Jason Wang does not contest the accuracy of the foregoing facts and procedural history. His opposition states, "Defendant does not dispute his obligation under the Settlement Agreement and remains fully committed to satisfying the remaining balance." (Opposition, p. 1.) Instead, he contends reducing the settlement agreement to a judgment is "unnecessary because the County's interests are already fully protected by the substantial real property equity, and Defendant has proposed an alternative that provides the County with adequate security while avoiding unnecessary litigation." (Opposition, pp. 1-2.) He proposes that plaintiffs be allowed to record a first-priority lien against the properties. But defendant already signed the stipulated agreement, which the parties agreed was "binding and enforceable on the Parties and their successors." (Exh. 4, p. 3.) Plaintiffs are under no obligation to agree to change the terms of the agreement the parties already signed close to two years ago. Defendant's proposal also does not take into account the receiver's super-priority lien. The court acknowledges defendant's argument that he has failed to make payments due to financial hardship. But that does not provide any basis for the court to deny plaintiffs' motion to enter judgment under the terms of the settlement agreement signed by the parties. (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 810 ["nothing in section 664.6 authorizes a judge to *create* the material terms of a settlement, as opposed to deciding what terms *the parties themselves* have previously agreed upon"].)

Plaintiffs' motion is granted. The parties' settlement agreement with first amendment (exh. 4 to the Bender dec.) contains the material terms of the judgment in this case. Defendant Ke Jason Wang is in material breach of that settlement agreement, with an overdue balance of

$349,000. He will also owe plaintiffs an additional $1,000,000 once the receivership proceedings are complete. And plaintiffs are the prevailing party under the attorney fee clause in the parties' settlement agreement, meaning they will be entitled to all reasonable attorney fees, costs, and expenses related to this proceeding to enforce the agreement. The attorney fee issue will need to be addressed by separately noticed motion.

Plaintiffs are ordered to prepare a proposed order and proposed judgment consistent with this order. The judgment must include all terms of the parties' settlement agreement (including the first amendment).

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Calendar Line 3 through 5
Case Name: Debbie Thompson v. Select Portfolio Servicing et al.
Case No.: 25CV480696

This is an action by self-represented plaintiff Debbie Thompson (Plaintiff), challenging the foreclosure of property located at 18285 Constitution Avenue, Monte Sereno, California, 95030 (subject property). The original and still operative verified complaint in this lawsuit was filed in November 2025 against defendants Select Portfolio Serving, Inc. (SPS), U.S. Bank (U.S. Bank), in its capacity as Successor Trustee to other entities, and Doe defendants. It alleges five causes of action: (1) declaratory relief; (2) wrongful foreclosure (Civ. Code, § 2924); (3) fraud; (4) quiet title; and (5) cancellation of instruments. There are no exhibits attached to the complaint.

At issue are three matters filed by defendants SPS and U.S. Bank (hereafter, Defendants): (1) a demurrer to the complaint; (2) a motion to strike portions of the complaint; and (3) a motion to have Plaintiff declared a vexatious litigant. Plaintiff filed a single opposition addressing all three matters. The court will sustain the demurrer without leave to amend, deny the motion to strike as moot, and grant the motion to declare Plaintiff a vexatious litigant.

REQUEST FOR JUDICIAL NOTICE

"Judicial notice may not be taken of any matter unless authorized or required by law." (Evid. Code, § 450.) A precondition to judicial notice in either its permissive or mandatory form is that the matter to be noticed be relevant to the material issue before the court. (*Silverado Modjeska Recreation and Park Dist. v. County of Orange* (2011) 197 Cal.App.4th 282, 307.) Evidence Code section 453, subdivision (b), requires a party seeking notice to "[furnish] the court with sufficient information to enable it to take judicial notice of the matter."

Defendants request judicial notice of 36 documents, citing Evidence Code section 452, subdivisions (c), (d), and (h). The court has considered the request filed with Defendants' moving papers on January 6, 2026, and has not considered the request filed on January 15. Evidence Code section 452, subdivision (h), does not apply to any of the submitted material. (*Gould v. Md. Sound Indus*. (1995) 31 Cal.App.4th 1137, 1145 ["Judicial notice under Evidence Code section 452, subdivision (h) is intended to cover facts which are not reasonably subject to dispute and are easily verified. These include, for example, facts which are widely accepted as established by experts and specialists in the natural, physical, and social sciences which can be verified by reference to treatises, encyclopedias, almanacs and the like or by persons learned in the subject matter."].)

The court grants judicial notice of exhibits 1 through 18 (copies of recorded documents). (*Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919, 924; Evid. Code, § 452, subd. (c).)

The court grants judicial notice of exhibits 19 through 36 (copies of court records). (Evid. Code, § 452, subd. (d).) Court orders may be judicially noticed as to their findings. Judicial notice of other court records is appropriate for the fact of their filing, but not as to the